

1114. THE LORD CHANCELLORS SPEECH TO SIR HENRY MOUNTAGUE, WHEN HE WAS SWORN CHIEF JUSTICE OF THE KINGS-BENCH.

Sir Henry Mountague,

The Kings Majesty in the governing of his Subjects, representeth the Divine Majesty of Almighty God ; for it is truly said of God, that *Infima per media ducit ad summa*. This I said lately in another place upon another occasion : this is my case, and this is your case, for after almost 14 years experience of your Wisdom, Learning, and Integrity, his Majesty is now graciously pleased to addresse unto you his Writ, under the Great Seal, calling you thereby to be his Chief Justice in this place, for Pleas to be holden before himself. A case rare, for you are called to a place vacant, not by death or cession, but by amotion and deposing of him that held the place before you, and that not as Sir William Thorpe in the time of the absence of King Ed. 3. when there was a *Custos Regni* ; nor as Sir Robert Tresilian in the disordered and unruly time of King R. 2. But in the peaceable and happy Reign of Great King James the great King of Great Brittain, wherein you see the Prophet Davids words true, He putteth down one, and setteth up another ; a Lesson to be learned of all, and to be remembred and feared of all that sit in Judicial places.

Your wisdom, and my weakness, is such, as there needeth no more to be said, and yet somewhat more I must say, though I speak it with pain.

To instruct by precepts is a long and uncertain way, by examples is more short and effectual : if Precepts need, the Kings Speech in [827] the Star-Chamber was such as nothing can be added, yet some incidents there be, that are fit to be remembred.

It is dangerous in a Monarchy, for a man holding a high and eminent place, to be ambitiously popular : take heed of it.

As it is a fault in a Judge to be too remiss, and too tender and soft in punishing offences ; so it is a fault as great or greater to be too sharp or severe ; you know who saith, *Noli esse nimis justus*, and *severitas* strained too far, sometime becomes *sæva veritas*, if not *sæva crudelitas* ; therefore beware of these two.

In hearing of Causes, you are to hear with patience, for patience is a great part of a Judge ; better bear with prolixity and impertinent discourse of Advocates and Lawyers, then rashly for default of the Lawyer to overthrow the Clients cause. In the one you lose but a little time ; by the other the Client loseth his right which can hardly be repaired. And remember, that *Deus dirigit mansuetos in judicio*. Yet you are to admonish, to reprehend, and to correct Lawyers, that observe not that discretion and duty which becomes them. It is said in France that there is *Rabiosa litigandi consuetudo*, if you find this in any brabbling and tumultuous Lawyers, you are not only to injoyn them silence, but to sequester them from their practice and exercise before you, if you see cause ; but still with this care and respect, that the Clients Cause be not prejudiced.

For Precepts this is enough, if not too much.

For Examples much is to be said, but to you there needs little. Great judgment and discretion is required in consideration of Examples, to ensue the good, and to eschew the evil ; and this is certain, that one evil example doth more harm, then ten good examples can do good. But for you, all may be closed in one word. Remember Sir Edward Mountague your worthy Grand-father, God made him Great and Honourable in his life, and hath crowned and blessed him with great happinesse in his Nephews and posterity, one a Reverend Prelate and Father, and a great Light in the Church of God ; some others employed in civil estate, do manage the affairs and businesses committed to their charge, with such wisdom, judgment, dexterity and integrity as they are second to none, but may be compared to any of their rank, place, and degree. And your self now called to succeed your worthy Grand-father, and to sit in this high place to be his Majesties Chief Justice for Pleas to be holden before himself, and called thereunto upon amotion and deposing of another by the great Judgment and Wisdom of the great King of Great Brittain, whose royal Vertues will be admired in all posterity.